

STATE OF NEW YORK

561--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. KRUEGER, CLEARE, HOYLMAN-SIGAL, JACKSON, RIVERA, SERRANO -- read twice and ordered printed, and when printed to be committed to the Committee on Housing, Construction and Community Development -- reported favorably from said committee and committed to the Committee on Finance -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the administrative code of the city of New York and the real property tax law, in relation to notice regarding the rent increase exemption for low income elderly persons and persons with disabilities programs

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The administrative code of the city of New York is amended
2 by adding a new section 26-605.2 to read as follows:

3 § 26-605.2 Required notice. (a) A tenant residing in a dwelling unit
4 subject to the provisions of this chapter shall be furnished a notice
5 informing such tenant about the tenant's potential eligibility for a
6 rent increase exemption pursuant to this chapter and sections four
7 hundred sixty-seven-b and four hundred sixty-seven-c of the the real
8 property tax law. The form and content of such notice shall be promul-
9 gated as required by paragraph i of subdivision three of section four
10 hundred sixty-seven-b of the real property tax law, provided that such
11 notice shall clearly and conspicuously display the eligibility require-
12 ments for the rent increase exemption and the website address and tele-
13 phone number where tenants may obtain more information.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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(b) The notice required by subdivision (a) of this section shall be furnished by the following agencies or individuals at the same time as the notice required by the occurrence of the following events:

(1) The state commissioner of housing and community renewal shall provide such notice to a tenant in the event of:

(i) Receipt of an application for a rent adjustment due to a major capital improvement;

(ii) A rent increase pursuant to section thirty-one of the private housing finance law;

(iii) Receipt of the annual certification required by section thirty-one of the private housing finance law; and

(iv) For dwelling units subject to chapter three of this title, a maximum base rent adjustment pursuant to paragraph one of subdivision g of section 26-405 of this title.

(2) The landlord of a dwelling unit shall provide such notice to a tenant:

(i) With an initial lease and any renewal lease; and

(ii) Upon the annual registration of a housing accommodation as required by section 26-517 of this title.

(c) When notice is furnished pursuant to paragraph one of subdivision (b) of this section, such notice shall include specific information as to the agency providing such notice.

§ 2. Subparagraph 2 of paragraph i of subdivision 3 of section 467-b of the real property tax law, as added by chapter 424 of the laws of 2015, is amended to read as follows:

(2) (A) a landlord of any housing accommodation subject to provisions of the local emergency housing rent control act, the emergency tenant protection act of nineteen seventy-four or any local laws enacted pursuant thereto, the emergency housing rent control law or the rent stabilization law of nineteen hundred sixty-nine shall, at least once annually, including with a new lease and all renewal leases and upon the annual registration of a housing accommodation as required by section 26-517 of the administrative code of the city of New York delivered to the occupant of such accommodation, provide the informational material describing eligibility for and the benefits of the senior citizen rent increase exemption program and the disability rent increase exemption program, as provided by the entity administering the program pursuant to subparagraph one of this paragraph.

(B) The notice required by clause (A) of this subparagraph shall be furnished by the state commissioner of housing and community renewal to a tenant at the same time as:

(i) Receipt of an application for a rent adjustment due to a major capital improvement;

(ii) A rent increase pursuant to section thirty-one of the private housing finance law;

(iii) Receipt of the annual certification required by section thirty-one of the private housing finance law; and

(iv) For dwelling units subject to chapter three of title twenty-six of the administrative code of the city of New York, a maximum base rent adjustment pursuant to paragraph one of subdivision g of section 26-405 of the administrative code of the city of New York.

(C) When notice is furnished pursuant to clause (B) of this subparagraph, such notice shall include specific information as to the agency providing such notice.

§ 3. Subdivision 3 of section 467-c of the real property tax law is amended by adding a new paragraph e to read as follows:

1 e. (1) Notwithstanding any provision of law to the contrary, a tenant
2 residing in a dwelling unit subject to the provisions of this section
3 shall be furnished a notice informing such tenant about the tenant's
4 potential eligibility for a rent increase exemption pursuant to this
5 section. The form and content of such notice shall be promulgated as
6 required by paragraph i of subdivision three of section four hundred
7 sixty-seven-b of this title.

8 (2) The notice required by subparagraph one of this paragraph shall be
9 furnished by the following agencies or individuals at the same time as
10 the notice required by the occurrence of the following events:

11 (A) The state commissioner of housing and community renewal shall
12 provide such notice to a tenant in the event of:

13 (i) Receipt of an application for a rent adjustment due to a major
14 capital improvement;

15 (ii) A rent increase pursuant to section thirty-one of the private
16 housing finance law;

17 (iii) Receipt of the annual certification required by section thirty-
18 one of the private housing finance law; and

19 (iv) For dwelling units subject to chapter three of title twenty-six
20 of the administrative code of the city of New York, a maximum base rent
21 adjustment pursuant to paragraph one of subdivision g of section 26-405
22 of the administrative code of the city of New York.

23 (B) The landlord of a dwelling unit shall provide such notice to a
24 tenant:

25 (i) With an initial lease and any renewal lease; and

26 (ii) Upon the annual registration of a housing accommodation as
27 required by section 26-517 of the administrative code of the city of New
28 York.

29 (3) When notice is furnished pursuant to clause (A) of subparagraph
30 two of this paragraph, such notice shall include specific information as
31 to the agency providing such notice.

32 § 4. This act shall take effect on the thirtieth day after it shall
33 have become a law. Effective immediately, the addition, amendment
34 and/or repeal of any rule or regulation necessary for the implementation
35 of this act on its effective date are authorized to be made and
36 completed on or before such effective date.